



Notification Waiver Determination

Triton - Flender

Acquisition	Foxtrott BidCo GmbH, indirectly controlled by the Triton Fund 6 GP SARL (Triton) applied for a notification waiver in respect of its proposed acquisition of 100% of the issued share capital of Flender Group GmbH (Flender), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	11 August 2026

Parties to the Acquisition	The acquirer, Foxtrott BidCo GmbH, is indirectly controlled by Triton Fund 6 GP SARL in its capacity as general partner of Triton Fund 6 SCSp, which together with a number of other limited partnerships, form part of Triton Fund 6, a private equity fund. Triton Fund 6 is one of the investments funds (the Triton Funds) managed and advised by entities being part of the Triton group. The Triton Funds, including Triton Fund 6, invest in medium sized companies headquartered in Central and Northern Europe operating in different markets, with particular focus on three core sectors: Business Services, Industrial Tech and Healthcare. In addition to managing private equity investment funds (Triton Fund I, IA, II, III, IV, V, and 6) and related activities and investments in middle-market companies (through the Triton Smaller Mid-Cap Funds), Triton also invests in credit facilities (through the Triton Debt Opportunities Funds). Relevant to the Acquisition, Triton Funds controls a portfolio company active in the wind turbine sector, FairWind, which provides wind turbine installation and lifecycle support. The target, Flender, is a German company engaged in the manufacture and supply of mechanical drive products and generators for industrial applications, power generation and the wind power industry, together with associated maintenance and repair services. In Australia, Flender operates through its subsidiary Flender Pty Ltd, and supplies services related to wind turbine drivetrain components, as well as supplying and servicing gearboxes and couplings for industrial applications such as mining. Flender does not carry out any manufacturing activities in Australia, and does not supply wind turbine drivetrain components (including gearboxes, couplings and generators) in Australia.
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Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: a. there is no horizontal overlap between Triton and Flender in the supply of wind turbine installation and lifecycle services, or specialised repair and servicing of wind turbine gearboxes and generators b. there is a low risk of foreclosure or other concerning vertical or conglomerate effects resulting from exclusionary conduct, bundling or tying of products or services post-acquisition c. the presence of alternative suppliers of wind turbine installation and lifecycle services, and specialised repair and servicing of wind turbine gearboxes and generators in Australia. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act